

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-9087

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSES TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF KRISTA MERRIE
CARPENTER, LICENSE NO. LPC.5485,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("the Board") and Krista Merrie Carpenter
("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC"), being issued license number LPC.5485, in the State of Colorado on December 8, 2009, and was so licensed at all times relevant herein. Respondent's LPC license expired on or about August 31, 2019.
3. This Order is a full and final resolution of case number 2018-9087. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. The Board finds, and Respondent admits, that Respondent has violated §§ 12-245-224(1)(f)(I) and (f)(II), C.R.S. by failing to report, and failing to act within the limitations created by, a mental health condition that affects her ability to treat clients with reasonable skill and safety.

VOLUNTARY RELINQUISHMENT

5. Respondent hereby voluntarily relinquishes her license and right to practice as a LPC in the State of Colorado, commencing on the effective date of this Order, and the Board accepts her relinquishment. This relinquishment shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for a license to practice as a LPC in the State of Colorado for at least three (3) years from the effective date of this Order, pursuant to § 12-20-404(3)(a)(III)(B), C.R.S.

TERMS AND CONDITIONS

6. Respondent is fully aware of and understands the right to have a formal disciplinary hearing, pursuant to §12-245-226, C.R.S., and hereby waives that right. Further, Respondent acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

7. This Order is entered into by the parties voluntarily and without coercion, after an opportunity to consult with counsel. The parties understand that they have the right to be represented by counsel, and are so represented in this matter.

8. This Order shall become an enforceable Order of the Boards when it is accepted and signed by the Program Director or authorized Board representative and served on Respondent and her counsel of record.

9. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a "Board Order" for purposes of §12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§12-245-224, 12-245-226, and 24-4-104(9), C.R.S.

10. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

11. This Order constitutes the entire agreement between Respondent and the Board. There are no other provisions, agreements, or promises, expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

12. This Order shall be admissible as evidence at any hearing held before the Boards.

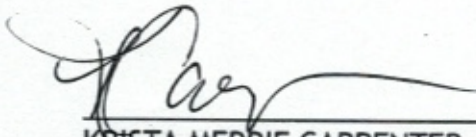
13. This Order shall be a public record in the custody of the Board.

EFFECTIVE DATE

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



KRISTA MERRIE CARPENTER
LPC.5485

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



WENDY ANDERSON
Interim Program Director

Effective this 1st day of June,
2020.